

SENATE No. 66

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a municipality's right of first refusal of agricultural and recreational land.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 66

By Mr. Moore, a petition (accompanied by bill, Senate, No. 66) of Michael O. Moore for legislation relative to a municipality's right of first refusal of agricultural and recreational land. Agriculture.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 45 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a municipality's right of first refusal of agricultural and recreational land.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to ensure a municipality's option to preserve certain lands, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 SECTION 1. Section 14 of chapter 61A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the figure "120", each time it appears, and
3 inserting in place thereof, in each instance, the following figure:- "180"; and,
- 4 Said section is hereby further amended by striking out the figure "90", the first and
5 second time it appears, and inserting in place thereof, in each instance, the following figure:-
6 "120".

SECTION 2. The sixteenth paragraph of said section 14 of said chapter 61A, as so appearing, is hereby further amended by adding the following sentence:- “The landowner shall respond no later than 30 days after having received the purchase and sale contract.”

SECTION 3. The twenty-third paragraph of said section 14 of said chapter 61, as so appearing, is hereby further amended by adding the following sentence:- “The city or town shall not be required to exercise the option to purchase any property not classified under this chapter.”

SECTION 4. Section 9 of chapter 61B of the General Laws, as so appearing, is hereby amended by striking out the figure “120”, each time it appears, and inserting in place thereof, in each instance, the following figure:- “180”; and,

Said section is hereby further amended by striking out the figure “90”, the first and second time it appears, and inserting in place thereof, in each instance, the following figure:- “120”.

SECTION 5. The sixteenth paragraph of said section 9 of said chapter 61B, as so appearing, is hereby amended by adding the following sentence:- “The landowner shall respond no later than 30 days after having received the purchase and sale contract.”

SECTION 6. The twenty-fourth paragraph of said section 9 of said chapter 61B, as so appearing, is hereby amended by adding the following sentence:- “The city or town shall not be required to exercise the option to purchase any property not classified under this chapter.”

SECTION 7. This act shall take effect upon its passage.